

DESCENT.
Collateral.

Persons dying intestate their estates real and personal to descend to the next of kin in the United States to the exclusion of aliens 1160, c 53

Persons dying intestate without relations in the United States to vest in the trustees of the academy of the county in which the deceased usually resided 1161, s 1

Manner of dividing altered ii 236, c 123,

Natural born children when to take by, ii 472; c 13

When aliens shall take by descent, ii 488, s 1

DETINUE.

Price or value omitted in the verdict to be supplied by writ of enquiry, 694, s 62

No verdict as to part of the things declared shall not be error but plaintiff shall lose his title to so much *ib*

DEVISEES.

See HEIRS AND DEVISEES.

Requisites to make a good devise of lands, 297, s 11; 312, s 5

Estates divided generally, devisee to take fee simple, 297, s 12

When deemed fraudulent as against creditors, 415, s 2, 3; 712, s 2, 3

DEVISES.

Of land when void as to creditors, ii 415, s 2; 712, s 2, 3

See DEVISEES AND HEIRS AND DEVISEES.

DISCLAIMER.

See TRESPASS.

When and under what circumstances it may be pleaded 15, s 7

DISCONTINUANCE.

Not take place when there is no court held, 459, s 8; 473, s 43, 44

DISMISSION.

Of suits in equity for want of prosecution, 690

Costs to be paid on such dismissal, 690, s 29

Of any certiorari or appeal judgment to be entered against principal and security with 12 1-2 per cent ii 383, s 2

DISSOLUTION.

Of injunction how judgment to be entered ii 383, s 1

See INJUNCTION.

DISTRIBUTION.

To be made of personal estate by executors and administrators and how, 31; s 6

In what courts enforced, 33, s 4 and references.

Distributive shares recoverable by petition, 103, s 23; 474, s 45 and references

How and to whom estates of persons dying intestate shall be distributed 110, s 1; 562. c 14

Natural born children when they shall take in the course of, ii 472, c 13

DIVORCE.

From the bonds of matrimony for what causes it may be obtained 645, s 1, c 19

Proceedings necessary for obtaining. 645-6, s 2

Proviso where either party marries supposing the other to be dead, 646, s 3

When adultery shall not be a good cause for, 647, s 4

Parties may marry again, *ib* s 5

But not with their former companions in adultery, *ib*

Issue not to be bastardized, *ib*

Penalty for cohabiting with adulterer after divorce, 647, s 6

Persons entitled to the benefit of this act must have resided in the state one year, *ib* s 7

Costs upon sentence of, how to be awarded, *ib* s 8

Divorce from bed and board when to take place, *ib* s 9

Alimony to the wife, 648, s 9, 10

An act concerning, repealed by 1307, c 97, and revived again by Nov. 1309, c 98